Notification Waiver Determination

MA Financial (Redcape Fund) – Caves Coastal Bar & Bungalows

Acquisition	Redcape Hotel Group Pty Ltd and MAHF Custodian Pty Ltd as custodian for RGM TT Pty Ltd (which is the trustee for the Caves Beach Hotel Trust) (together, the **Acquirers**) applied for a notification waiver in respect of their proposed acquisition of all the freehold and strata land interests, buildings, licences and business assets (both tangible and intangible) of Caves Coastal Bar & Bungalows located in New South Wales (NSW) (the **Target**) as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	26 October 2026

Parties to the Acquisition	The Acquirers are part of MA Financial's Redcape Fund, which owns and operates community pubs and hotels. The Redcape Fund portfolio currently has 41 pubs and hotels in NSW, Queensland and Victoria. The Target is a community pub and hotel offering food, beverage, accommodation, gaming, entertainment and function and event services. It is located at 27 Mawson Close and 12A Beachside Drive, Caves Beach NSW 2281. The Target has 18 studio style accommodation bungalows and 17 gaming machine licences that will be acquired through the Acquisition. The Target also hosts a 'Beer, Food & Wine Festival.' The Acquirer and the Target both supply accommodation, dining, entertainment, gaming and on-premises liquor services at their respective venues.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information provided in the application, the Acquisition is unlikely to give rise to any material lessening of competition given: a) there is a small horizontal overlap between the Acquirer and the Target in the supply of accommodation, on-premises liquor, dining and gaming services in the local area surrounding the Target

	b) there are alternative suppliers of accommodation, on-premises liquor, dining and gaming services in the local area surrounding the Target. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act